

# Federal Power Act: The Department of Energy's Emergency Authority

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Section 202(c) of the Federal Power Act (16 U.S.C. §824a(c)) grants the Secretary of Energy certain authorities over the temporary operation of the electricity system during emergencies. Actions by the Trump Administration have highlighted this provision and raised questions about its future implementation. This report provides a brief history of these emergency authorities and discusses current issues and considerations for Congress.

## History of Section 202(c) of the Federal Power Act

Title II of the Federal Power Act was enacted in 1935 and included emergency authority language. At the time, federal oversight of the electricity system was conducted by the Federal Power Commission (FPC). Now, the Federal Energy Regulatory Commission (FERC) has most responsibilities for electricity system oversight—but not for emergencies. The emergency authority was transferred to the Secretary of Energy when the Department of Energy (DOE) was established by the Department of Energy Organization Act (P.L. 95-91) in 1977. Hereinafter, the emergency authority is described as residing with DOE.

Section 202(c) of the Federal Power Act provides DOE broad discretion to require almost any change to the operation of the U.S. electricity system on a temporary basis. Specifically, DOE may “require by order such temporary connections of facilities and such generation, delivery, interchange, or transmission of electric energy as in its judgment will best meet the emergency and serve the public interest.”<sup>1</sup>

DOE may execute this authority during war or at any other time it “determines that an emergency exists by reason of a sudden increase in the demand for electric energy, or a shortage of electric energy or of facilities for the generation or transmission of electric energy, or of fuel or water for generating facilities, or other causes.”<sup>2</sup> This report focuses on the authority as used during emergencies, not war, and it focuses on DOE’s authority—it does not discuss other energy emergency authorities.<sup>3</sup>

In 2015, Congress amended Section 202(c) to specify how the emergency authority should interact with environmental requirements for power plants. In practice, the amendments prioritize electric reliability over environmental protection, essentially by providing a waiver of federal, state, or local environmental laws and regulations during times of emergencies.

The waiver provided during emergencies has limitations. First, DOE emergency orders that may result in conflicts with environmental requirements may be issued for 90-day periods. They may be renewed for additional 90-day periods as long as DOE deems these renewals necessary to meet the emergency. Second, if an emergency order would result in a violation of a federal, state, or local environmental law or regulation, DOE must ensure the order is in effect “only during hours necessary to meet the emergency and serve the public interest.” Lastly, DOE must “to the maximum extent practicable” ensure the order is consistent with environmental laws or regulations and “minimizes any adverse environmental impacts.”

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<sup>1</sup> 16 U.S.C. §824a(c)(1).

<sup>2</sup> 16 U.S.C. §824a(c)(1).

<sup>3</sup> For example, in the 1970s, Congress passed several laws granting the President certain authorities to respond to energy shortages at the time. A discussion of those laws is beyond the scope of this report.

## DOE Implementation

DOE's regulations for implementing its emergency authority were finalized in 1981.<sup>4</sup> The regulations define terms, including "emergency," and specify requirements for requesting an emergency order.

The Section 202(c) emergency authority is focused primarily on short-term situations—though, as shown below, DOE has exercised this authority in situations of varying duration. DOE's regulations emphasize the short-term nature of "emergencies" in this context. In the 1981 rulemaking, DOE explained,

The DOE does not intend these regulations to replace prudent utility planning and system expansion. This intent has been reinforced in the final rule by expanding the 'Definition of Emergency' to indicate that, while a utility may rely upon these regulations for assistance during a period of unexpected inadequate supply of electricity, it must solve long-term problems itself.<sup>5</sup>

DOE and FPC have used the emergency authority several dozen times since 1935 in response to different kinds of emergencies.

DOE's website contains information on use of the emergency authority since 2000.<sup>6</sup> From 2000 through October 1, 2026, DOE used its emergency authority in response to 39 events (**Table 1**). Of these events, 23 were weather-related and included hurricanes, heat waves, and winter storms. Some events prompted multiple emergency orders—because more than one utility experienced emergency conditions (e.g., Winter Storm Elliot in 2022), because the initial emergency order was extended (e.g., the California energy crisis of 2000-2001), or both (e.g., Winter Storm Fern in 2026).

Details on the use of the Section 202(c) emergency authority prior to 2000 are not available in a single DOE repository; they are therefore more difficult to comprehensively compile. According to one compilation, the emergency authority was used 29 times prior to 2000; 22 of these occasions were in association with World War II.<sup>7</sup>

The duration of emergency orders under Section 202(c) has varied; some have lasted a few hours, while others have been extended via subsequent emergency orders to cover events lasting more than a year. Among the orders listed on DOE's website, the shortest order CRS identified occurred in response to a heat wave in Texas in September 2023. DOE granted an emergency order in this case for four hours on each of two days to respond to the highest levels of expected electricity demand.<sup>8</sup> The order allowed one coal-fired unit and 16 natural gas-fired units to operate in violation of limits on sulfur dioxide, nitrogen oxide, mercury, carbon monoxide, and wastewater during those hours, if required to maintain electric reliability.

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<sup>4</sup> 10 C.F.R. §§205.370-205.379.

<sup>5</sup> Department of Energy (DOE), Economic Regulatory Administration, "Emergency Interconnection of Electric Facilities and the Transfer of Electricity to Alleviate an Emergency Shortage of Electric Power" (final rule), 46 *Federal Register* 39985, August 6, 1981, [https://archives.federalregister.gov/issue\\_slice/1981/8/6/39984-39991.pdf#page=2](https://archives.federalregister.gov/issue_slice/1981/8/6/39984-39991.pdf#page=2).

<sup>6</sup> See DOE, "DOE's Use of Federal Power Act Emergency Authority," <https://www.energy.gov/ceser/does-use-federal-power-act-emergency-authority>; and DOE, "DOE's Use of Federal Power Act Emergency Authority – Archived," <https://www.energy.gov/ceser/does-use-federal-power-act-emergency-authority-archived>.

<sup>7</sup> Benjamin Rolsma, "The New Reliability Override," *Connecticut Law Review*, vol. 57, no. 3 (May 2025).

<sup>8</sup> Additional information is available at DOE, "Federal Power Act Section 202(c): ERCOT September 2023," <https://www.energy.gov/ceser/federal-power-act-section-202c-ercot-september-2023>.

In the longest event CRS identified among the orders listed on DOE's website, DOE granted multiple renewals to a request to allow two coal-fired units in Virginia to continue operating, as needed for reliability, in violation of mercury emissions limitations while a transmission facility was constructed. Emergency orders in response to that event were in effect from June 16, 2017, to March 8, 2019.<sup>9</sup>

**Table I. Events for Which DOE Issued Emergency Orders**  
2000 through October 1, 2026

| Year | Event                              | Affected State(s)                                                                        | Was Event Extended? |
|------|------------------------------------|------------------------------------------------------------------------------------------|---------------------|
| 2026 | Heat Wave (September) <sup>a</sup> | North Carolina, South Carolina                                                           | No                  |
| 2026 | Shortage of Generation Facilities  | PJM Region                                                                               | No                  |
| 2026 | Heat Wave (September) <sup>a</sup> | North Carolina, South Carolina                                                           | No                  |
| 2026 | Heat Wave (September)              | PJM Region                                                                               | No                  |
| 2026 | Shortage of Generation Facilities  | Guam                                                                                     | No                  |
| 2026 | Heat Wave (July)                   | SPP West and East Regions                                                                | No                  |
| 2026 | Heat Wave (July)                   | SPP West Region                                                                          | Yes                 |
| 2026 | Heat Wave (July)                   | PJM Region                                                                               | No                  |
| 2026 | Heat Wave (July)                   | North Carolina, South Carolina                                                           | No                  |
| 2026 | Heat Wave (June)                   | PJM Region                                                                               | Yes                 |
| 2026 | Heat Wave (June)                   | North Carolina                                                                           | No                  |
| 2026 | Shortage of Generation Facilities  | Florida (Stanton Energy Center)                                                          | Yes                 |
| 2026 | Heat Wave (May)                    | PJM Region                                                                               | No                  |
| 2026 | Winter Storm Fern                  | Florida, New England states, New York, North Carolina, PJM Region, South Carolina, Texas | Yes <sup>b</sup>    |
| 2025 | Shortage of Generation Facilities  | Colorado (Craig Station)                                                                 | Yes                 |
| 2025 | Shortage of Generation Facilities  | Indiana (F.B. Culley Generating Station)                                                 | Yes                 |

<sup>9</sup> Additional information is available at DOE, "Federal Power Act Section 202(c) – PJM Interconnection & Dominion Energy Virginia, 2017," June 19, 2017, <https://www.energy.gov/oe/articles/federal-power-act-section-202c-pjm-interconnection-dominion-energy-virginia-2017>.

| <b>Year</b> | <b>Event</b>                        | <b>Affected State(s)</b>                             | <b>Was Event Extended?</b> |
|-------------|-------------------------------------|------------------------------------------------------|----------------------------|
| 2025        | Shortage of Generation Facilities   | Indiana (R.M. Schahfer Generating Station)           | Yes                        |
| 2025        | Shortage of Generation Facilities   | Washington (TransAlta Centralia Generation Facility) | Yes                        |
| 2025        | Shortage of Generation Facilities   | Maryland (H.A. Wagner Generating Station)            | Yes                        |
| 2025        | Heat Wave                           | North Carolina, South Carolina                       | No                         |
| 2025-2026   | Shortage of Generation Facilities   | Pennsylvania (Eddystone Generating Station)          | Yes                        |
| 2025-2026   | Shortage of Generation Facilities   | Michigan (J.H. Campbell Generating Plant)            | Yes                        |
| 2025-2026   | Shortage of Generation Facilities   | Puerto Rico                                          | Yes                        |
| 2024        | Hurricane Milton                    | Florida                                              | No                         |
| 2023        | Heat Wave                           | Texas                                                | No                         |
| 2022        | Winter Storm Elliott                | PJM Region, Texas                                    | Yes                        |
| 2022        | Heat Wave                           | California                                           | Yes                        |
| 2021        | Heat Wave                           | California                                           | No                         |
| 2021        | Winter Storm Uri                    | Texas                                                | No                         |
| 2020        | Heat Wave                           | California                                           | No                         |
| 2020        | Hurricane Laura                     | Texas                                                | No                         |
| 2017-2019   | Shortage of Transmission Facilities | Virginia                                             | Yes                        |
| 2017        | Shortage of Generation Facilities   | Oklahoma                                             | No                         |
| 2008        | Hurricane Ike                       | Texas                                                | No                         |
| 2005        | Hurricanes Katrina and Rita         | Texas                                                | Yes                        |
| 2005-2007   | Shortage of Transmission Facilities | Virginia                                             | Yes                        |
| 2003-2004   | Northeast Blackout                  | Connecticut, New York                                | Yes                        |
| 2002        | Shortage of Transmission Facilities | Connecticut, New York                                | No                         |

| Year      | Event                    | Affected State(s) | Was Event Extended? |
|-----------|--------------------------|-------------------|---------------------|
| 2000-2001 | California Energy Crisis | California        | Yes                 |

**Source:** CRS analysis of information from Department of Energy (DOE), “DOE’s Use of Federal Power Act Emergency Authority,” <https://www.energy.gov/ceser/does-use-federal-power-act-emergency-authority>; and DOE, “DOE’s Use of Federal Power Act Emergency Authority – Archived,” <https://www.energy.gov/ceser/does-use-federal-power-act-emergency-authority-archived>.

**Notes:** Events are listed by date of issuance of the original emergency order. Information is current as of October 1, 2026. During Summer 2026, several grid operators requested and received emergency orders in response to multiple heat waves. Each heat wave is listed separately in this table and labeled by the month in which the emergency order started. For emergency orders affecting a specific power plant, the power plant name is listed alongside the affected state. PJM is the grid operator for all or part of Delaware, Illinois, Indiana, Kentucky, Maryland, Michigan, New Jersey, North Carolina, Ohio, Pennsylvania, Tennessee, Virginia, West Virginia, and the District of Columbia. PJM Region is listed as the affected state(s) when the order directed PJM to take action. SPP East is the grid operator for all or part of Arkansas, Iowa, Kansas, Louisiana, Minnesota, Missouri, Montana, Nebraska, New Mexico, North Dakota, Oklahoma, South Dakota, Texas, and Wyoming. SPP West is the grid operator for parts of Arizona, Colorado, Montana, Nebraska, New Mexico, Utah, and Wyoming. An SPP Region is listed as the affected state(s) when the order directed an SPP grid operator to take action. New England states for purposes of this table are Connecticut, Maine, Massachusetts, New Hampshire, Rhode Island, and Vermont. Guam and Puerto Rico are listed as states for purposes of this table. Events listed as being extended had additional, subsequent emergency orders issued after the expiration of the initial emergency order(s).

- a. DOE issued emergency orders in response to two separate heat waves in September 2026 affecting parts of North Carolina and South Carolina.
- b. Not all of the emergency orders issued in response to Winter Storm Fern were extended. In total, DOE issued 20 emergency orders in response to the storm, 5 of which were extensions of previous Winter Storm Fern-related orders.

## Trump Administration Actions

On April 8, 2025, President Trump issued Executive Order (EO) 14262, “Strengthening the Reliability and Security of the United States Electric Grid.”<sup>10</sup> EO 14262 directs DOE to “streamline, systemize, and expedite” its processes for issuing emergency orders when “the relevant grid operator forecasts a temporary interruption of electricity supply is necessary to prevent a complete grid failure.” A blackout is an example of a temporary interruption of electricity supply.

The EO additionally directs DOE to develop “a uniform methodology for analyzing current and anticipated” electricity supply and demand balance and a “protocol to identify which generation resources within a region are critical to system reliability.” The EO provides that the protocol must “include all mechanisms available under applicable law, including Section 202(c) of the Federal Power Act, to ensure any generation resource identified as critical within an at-risk region is appropriately retained.” Further, the EO mandates that the protocol prevent, “as the Secretary of Energy deems appropriate and consistent with applicable law,” identified resources from “leaving the bulk-power system” or converting fuels in such a way that reduces their accredited capacity. An example of fuel conversion that could reduce accredited capacity is replacing a coal-fired power plant with a solar farm.

<sup>10</sup> Executive Order 14262 of April 8, 2025, “Strengthening the Reliability and Security of the United States Electric Grid,” 90 *Federal Register* 15521-15522, April 14, 2025, <https://www.federalregister.gov/documents/2025/04/14/2025-06381/strengthening-the-reliability-and-security-of-the-united-states-electric-grid>.

In July 2025, DOE released a report on its efforts to comply with EO 14262.<sup>11</sup> The report estimated supply and demand balance (*resource adequacy*) for the United States in 2030 using a methodology capable of evaluating hourly demand and supply balances. DOE projected that by 2030 total electricity demand would grow by 101 gigawatts (GW): a 50 GW increase from data centers and a 51 GW increase from other sources. DOE's report used two scenarios of future electricity supply, reflecting different assumptions about power plant retirements.<sup>12</sup> DOE used historic weather data to account for hourly changes in both supply and demand. In the low-supply case, the estimated annual loss of load hours (a measure of resource adequacy) increased from 8.1 hours for the current system to 817 hours in 2030.<sup>13</sup> In the high-supply case, the estimated loss of load hours increased to 269.9 hours in 2030.<sup>14</sup> The report pointed out that the estimated loss load

is not an indication that reliability coordinators would allow this level of load growth to jeopardize the reliability of the system. Rather, it represents the unrealizable AI and data center load growth under the given assumptions for generator build outs by 2030, generator retirements by 2030, reserve requirements, and potential load growth. These numbers are used as indicators to determine where it may be beneficial to encourage increased generation and transmission capacity to meet an expected need.

The language of the EO is nonspecific regarding the duration of any DOE action to retain resources or prevent them from leaving the bulk-power system. The EO language could be interpreted to mean DOE should take long-term action (i.e., lasting multiple years) or indefinite action. Emergency orders issued in response to multiyear events would be unusual, though not unprecedented, applications of DOE's Section 202(c) authority. It is unclear the extent to which limits to the authority might exist through judicial review or other avenues if DOE were to choose to issue long-term or indefinite emergency orders.

Under the second Trump Administration, initial emergency orders issued by DOE in May 2025 were seemingly new uses of the emergency authority. DOE has extended each of these orders multiple times.

DOE issued two of these emergency orders in response to anticipated electricity supply shortages in Puerto Rico in summer 2025.<sup>15</sup> One of the orders directed the local utility to conduct vegetation management (e.g., shrub clearing) around specified transmission lines on the island.<sup>16</sup> CRS has

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<sup>11</sup> DOE, *Resource Adequacy Report: Evaluating the Reliability and Security of the United States Electric Grid*, July 2025, <https://www.energy.gov/sites/default/files/2025-07/DOE%20Final%20EO%20Report%20%28FINAL%20JULY%20%29.pdf> (hereinafter DOE report).

<sup>12</sup> In both supply scenarios, 209 gigawatts (GW) of new supply are added by 2030, based on utility reports of new power plants in advanced stages of development as of 2024. In one case, DOE assumes that 104 GW of supply are retired, based on announcements as of 2024, for a net new supply of 105 GW. In the other case, DOE assumes no retirements.

<sup>13</sup> As defined in the DOE report, loss of load hours (LOLH) "measures the expected duration of power outages when a system's load exceeds its available generation capacity. At the core, LOLH helps assess how frequently and for how long the power system is likely to experience insufficient supply, providing a picture of reliability in terms of time." DOE report, p. 3.

<sup>14</sup> Reported annual loss of load hours is the average across the 12 weather years modeled in the report. DOE report, Table 1.

<sup>15</sup> For background on Puerto Rico's electricity system, see CRS In Focus IF12913, *Electric Reliability and Resiliency in Puerto Rico*, by Corrie E. Clark.

<sup>16</sup> Secretary of Energy Chris Wright, *Order No. 202-25-2*, May 16, 2025, <https://www.energy.gov/sites/default/files/2025-05/PREPA%20202%28c%29%20Emergency%20Measures%20Transmission.pdf>. DOE subsequently determined that emergency conditions continued to exist in Puerto Rico and extended the emergency orders in August 2025, November 2025, and February 2026. Subsequent emergency orders are available on DOE's website at <https://www.energy.gov/ceser/federal-power-act-section-202c-puerto-rico-electric-power-authority-prepa>.

not identified any other emergency orders issued from 2000 to the present addressing vegetation management.

DOE also issued orders to address elevated risk of supply shortages in parts of the country. DOE ordered a delay in retirement plans for a coal-fired power plant in Michigan and a natural gas/oil dual-fired power plant in Pennsylvania.<sup>17</sup> Unlike in the cases of other emergency orders issued since 2000, the relevant grid operators in these cases appear to have not requested DOE action. Moreover, neither grid operator had identified reliability risks specifically associated with the retirement of the power plants in question at the time the operators approved those retirements. One of the affected grid operators, PJM, issued a supportive statement following the emergency order.<sup>18</sup>

Later in 2025, DOE issued additional emergency orders to delay retirements of four coal-fired power plants: one in Washington state, two in Indiana, and one in Colorado.<sup>19</sup> In June 2026, DOE issued an emergency order to delay the retirement of a coal-fired power plant in Florida.<sup>20</sup> In these cases, as in the cases of the Michigan and Pennsylvania power plants, the relevant grid operators do not appear to have requested DOE action.

Several legal challenges have been filed in response to some of DOE's emergency orders delaying planned power plant retirements. In September 2026, in the first ruling in one of these cases, DOE's order was vacated.<sup>21</sup> In evaluating DOE's emergency order to delay a coal-fired power plant retirement in Michigan, the D.C. Circuit Court of Appeals determined that the Federal Power Act limits DOE's authority to "a grid-reliability risk that calls for an immediate response by DOE in particular."<sup>22</sup> The court determined that planned power plant retirements do not qualify and are more appropriately, pursuant to the Federal Power Act, handled by state utility regulators.<sup>23</sup>

In another seemingly novel use of the emergency authority, Secretary of Energy Chris Wright wrote to grid operators nationwide to say he would issue emergency orders to direct backup

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<sup>17</sup> Secretary of Energy Chris Wright, *Order No. 202-25-3*, May 23, 2025, [https://www.energy.gov/sites/default/files/2025-05/Midcontinent%20Independent%20System%20Operator%20%28MISO%29%20202%28c%29%20Order\\_1.pdf](https://www.energy.gov/sites/default/files/2025-05/Midcontinent%20Independent%20System%20Operator%20%28MISO%29%20202%28c%29%20Order_1.pdf); and Secretary of Energy Chris Wright, *Order No. 202-25-4*, May 30, 2025, <https://www.energy.gov/sites/default/files/2025-05/Federal%20Power%20Act%20Section%20202%28c%29%20PJM%20Interconnection.pdf>. DOE subsequently determined that emergency conditions continued to exist in those regions and extended the emergency orders in August 2025, November 2025, and February 2026. Subsequent emergency orders for each power plant are available on DOE's website at <https://www.energy.gov/ceser/does-use-federal-power-act-emergency-authority>.

<sup>18</sup> PJM, "PJM Statement on the U.S. Department of Energy 202(c) Order of May 30," press release, May 31, 2025, <https://www.pjm.com/-/media/DotCom/about-pjm/newsroom/2025-releases/20250531-doe-202c-statement-to-defer-retirements-of-certain-generators.pdf>.

<sup>19</sup> Secretary of Energy Chris Wright, *Order No. 202-25-11*, December 16, 2025, <https://www.energy.gov/documents/order-number-202-25-11>; Secretary of Energy Chris Wright, *Order No. 202-25-12*, December 23, 2025, <https://www.energy.gov/documents/order-number-202-25-12-schahfer>; Secretary of Energy Chris Wright, *Order No. 202-25-13*, December 23, 2025, <https://www.energy.gov/documents/order-number-202-25-13-culley>; and Secretary of Energy Chris Wright, *Order No. 202-25-14*, December 30, 2025, <https://www.energy.gov/documents/federal-power-act-section-202c-craig-order-no-202-25-14>.

<sup>20</sup> Secretary of Energy Chris Wright, *Order No. 202-26-26*, June 4, 2026, <https://www.energy.gov/documents/doe-emergency-order-no-202-26-26>.

<sup>21</sup> *Michigan v. U.S. Department of Energy*, No. 25-1159, 2026 WL 2671756 (D.C. Cir 2026), [https://media.cadc.uscourts.gov/opinions/docs/2026/09/25-1159-2192454.pdf?\\_sp=a4df1fde-1e0c-4c51-8431-955f43c2e8e3.178915116578](https://media.cadc.uscourts.gov/opinions/docs/2026/09/25-1159-2192454.pdf?_sp=a4df1fde-1e0c-4c51-8431-955f43c2e8e3.178915116578).

<sup>22</sup> *Id.* at \*12.

<sup>23</sup> *Id.* at \*4.

generators to be used in emergencies.<sup>24</sup> Backup generators are typically owned and operated by electricity customers, rather than utilities, and used only by customers during power outages. In the letter, Secretary Wright indicated he would issue such emergency orders (1) only if sufficient grid-connected generators were unavailable; and (2) only for backup generators at noncritical facilities. As part of their preparation for Winter Storm Fern in January 2026 and subsequent cold weather, seven grid operators requested (and received) emergency orders related to backup generators in their regions.<sup>25</sup> Seven emergency orders issued during summer 2026 directed grid operators to direct backup generators to operate. The extent to which backup generators have actually been used in response to emergency conditions is unclear.

Other DOE emergency orders issued in 2025 and 2026 were more typical of orders in previous Administrations since 2000, in that they were issued in response to a grid operator request. For example, in June 2025, DOE issued an emergency order in response to a request from a utility anticipating high electricity demand during a heat wave.<sup>26</sup> The duration of the June 2025 emergency order was less than two days. In July 2025, DOE issued an emergency order in response to PJM's request to allow an oil-fired power plant in Maryland to operate if needed for reliability, potentially in excess of operational limits due to sulfur dioxide restrictions. DOE extended that emergency order in October 2025.<sup>27</sup>

## Issues for Congress

EO 14262 does not specify how the Secretary of Energy should streamline its processes for issuing emergency orders. Congress could evaluate whether DOE's existing regulations would benefit from streamlining and, if Congress determines they do, could provide policy direction and set a timeline for updating the regulations. Congress also could defer to DOE's discretion as to when and how to update its regulations.

Regarding the statutory authority itself, Congress could consider whether amendments to Section 202(c) of the Federal Power Act are appropriate. The primary language has remained unchanged since 1935. Nonetheless, the U.S. electricity system has changed in many ways since 1935, and Congress might choose to consider reevaluating the authority, particularly in light of recent federal court decisions.

One potential aspect for congressional consideration is the duration of DOE emergency orders, especially in relation to critical resources identified pursuant to EO 14262. Under current law, and assuming such orders might result in a conflict with environmental requirements, DOE could potentially reissue its emergency orders every 90 days for an indeterminate amount of time. Repeated emergency orders may raise feasibility questions, such as whether successive emergency orders would be upheld by the courts or whether power plant owners would make

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<sup>24</sup> Letter from Secretary of Energy Chris Wright to Reliability Coordinators and Balancing Authorities, January 22, 2026, <https://www.energy.gov/documents/leveraging-backup-generation-facilities-during-energy-emergencies>.

<sup>25</sup> In January and February 2026, DOE issued emergency orders related to backup generators to (in chronological order) ERCOT, PJM, Duke Energy Carolinas, Duke Energy Progress, Florida Municipal Power Agency, Lakeland Electric, and Orlando Utilities Commission. The applications, emergency order details, and (in some cases) list of identified backup generators are available on DOE's website at <https://www.energy.gov/ceser/2026-doe-202c-orders>.

<sup>26</sup> Secretary of Energy Chris Wright, *Order No. 202-25-5*, June 24, 2025, <https://www.energy.gov/sites/default/files/2025-06/Duke%20Energy%20Carolinas%20202%28c%29%20Order.pdf>.

<sup>27</sup> Documents related to this emergency order are available on DOE's website at <https://www.energy.gov/ceser/federal-power-act-section-202c-pjm-interconnection-0>. In its July 2025 application for the emergency order, PJM estimated the affected power plant had "only 80 hours of run time remaining" for the year. In its October 2025 application for the extension of the emergency order, PJM estimated the affected power plant had "approximately 80 fuel oil burning hours remaining," suggesting that the affected power plant did not operate between July and October.

long-term investments to maintain power plants that are operating primarily under emergency orders.

Congress could consider evaluating and clarifying via legislation whether the Section 202(c) authority is better reserved for short-term situations or whether application to long-term situations is appropriate. Some backers of power plants at risk of retirement (e.g., coal-fired power plants) might support extended emergency orders based on long-term economic considerations. At the same time, some backers of power plants with low greenhouse gas emissions (e.g., solar generators) might support extended emergency orders based on long-term environmental considerations. Others might prefer to limit DOE's emergency authorities to short-term situations. A more limited role for DOE in electricity system operations allows for greater use of market forces and reliance on local- and state-level processes to prepare for and respond to emergencies.

Another potential aspect for congressional consideration is the definition of "emergency" in the context of Section 202(c). Current law gives DOE broad discretion in determining what constitutes an emergency, though recent federal court decisions appear to somewhat limit that discretion. Congress could consider what level of discretion is appropriate, and whether additional (or alternative) statutory direction would better serve current system needs.

As noted above, some supporters of specific kinds of power plants might view sustained economic conditions or environmental impacts as emergencies that warrant DOE action. Those situations would appear to be novel exercises of DOE authority under Section 202(c), if DOE were to interpret them in such a way. Amendments to the Federal Power Act could clarify congressional intent regarding use of DOE's emergency authority in response to those situations or any other long-term situation.

Other stakeholders might wish to limit DOE's discretion in when to issue emergency orders—for example, by modifying the currently broad statutory language or by requiring additional review by FERC or another entity.

A third potential aspect for congressional consideration is the scope of interventions allowed under the emergency authority. Current law allows DOE to order almost any change in operation of the electricity system.

Emergency orders between 2000 and 2024 directed either the operation of certain generators as needed for reliability or the temporary interconnection of the main Texas grid with neighboring regions' grids. One of DOE's May 2025 emergency orders (and subsequent extensions) requires Puerto Rico's local utility to conduct vegetation management activities.

One operational consideration that has not been tested under DOE's emergency authority (at least not in the orders available on DOE's website) is the curtailment of certain generators. Curtailment occurs when a grid operator directs a generator to reduce its output or cease operating altogether for a certain amount of time. Curtailment is sometimes necessary when generation levels in a given location exceed the transmission system's capacity to transmit energy out of that location.

Two bills introduced in the 119<sup>th</sup> Congress would amend Section 202(c). The No Big Fossil Bailouts on Your Power Bill Act (S. 4337) would reduce DOE's discretion over when to issue emergency orders, including by limiting DOE's ability to delay power plant retirements to emergencies that cannot be met in any other manner and only when requested by the relevant grid operator. Additionally, S. 4337 would require a consideration of ratepayer impacts before emergency orders could be extended. The Energy Bills Relief Act (H.R. 7977) would limit the emergency authority to emergencies that currently exist or that "will occur within 6 months." H.R. 7977 would additionally set a 90-day expiration on all emergency orders (not just those that

are potentially in conflict with environmental laws and regulations, as is currently the case) and require public disclosures about the costs of complying with emergency orders.

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Specialist in Energy Policy

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